

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SARDAR TARIQ MASOOD
MR. JUSTICE MUHAMMAD ALI MAZHAR

CIVIL PETITION No.1545 OF 2019

(Against the judgment of the Islamabad High Court, Islamabad dated 04.02.2019 in W.P.No.636/2017)

Iftikhar Ahmed

...Petitioner

VERSUS

The Rector, National University of Science
Technology (NUST), Islamabad

...Respondent

For the Petitioner: Hafiz Arfat Ahmad Ch., ASC

For the Respondent: N.R.

Date of Hearing: 19.04.2022

JUDGMENT

MUHAMMAD ALI MAZHAR, J:- This Civil Petition for leave to appeal is directed against the judgment dated 04.02.2019 passed by the learned Single Judge of Islamabad High Court, Islamabad in Writ Petition No. 636 of 2017, whereby the Writ Petition was dismissed.

2. The learned counsel for the petitioner argued that an inquiry was conducted against the petitioner on the allegation that he leaked the question papers of NUST Entry Test-2011. He was found guilty of misconduct and was therefore removed from service as Assistant Controller of Exams w.e.f. 30.03.2012. He filed a service appeal in the Federal Service Tribunal which was dismissed for want of jurisdiction. Thereafter, the petitioner filed Writ Petition No. 830/2013 in the Islamabad High Court which was disposed of on the statement made by the respondent that the petitioner's case would be

considered on merits as well as on humanitarian grounds. Hence, the Islamabad High Court directed the respondent to decide the petitioner's appeal sympathetically and in accordance with the law. After these directions, the pending appeal of the petitioner was allowed by the department and he was reinstated in service as Assistant Director (BPS-17) w.e.f. 30.03.2012. He was also granted full pay and allowances for the period of his absence from duty due to removal from service w.e.f. 30.03.2012 to 20.12.2012. However, the respondent did not grant full pay and allowances for the period as the petitioner was gainfully employed with U.E.T Taxila from 21.12.2012 to 05.09.2016 and this period of absence was treated by the respondent as an extraordinary leave without pay.

3. The learned counsel argued that though the petitioner was employed by another institution during such period, the respondent had no right to disallow the back benefits of the said period to the petitioner. He referred to the judgment of this Court rendered in the case of Abdul Hafeez Abbasi and others. vs. Managing Director, Pakistan International Airlines Corporation, Karachi and others. (2002 SCMR 1034).

4. We have heard the learned counsel for the petitioner. It is clearly decipherable from the record that after removal from service, the petitioner was gainfully employed by U.E.T, Taxila as Deputy Director QEC. The concept of granting back benefits in the civil servant structure as well as in labour laws is to accommodate the employee who during the period of dismissal or termination of service period remained jobless and it is also well settled exposition of law that during Court proceedings, if it is disclosed and proved that the said person was gainfully employed after the termination or dismissal of

his service, then obviously he is not entitled to claim back benefits for the said period and even in the proceedings initiated by such employee against the employer against the dismissal or termination of service, he is required to mention in his pleadings that he remained jobless and was not gainfully employed by any other employer. So far as the niceties of Abdul Hafeez Abbasi (supra) case is concerned, it was held that, in order for an employee to become entitled to back benefits, he had to demonstrate before the original *fora* that during the pendency of appeal, he had not made any earnings by engaging himself into profit oriented activity either by accepting any employment or doing some business. Such prayer necessarily had to be made in the pleadings. It is also reflected from the record of instant case that the Petitioner was performing duties with the respondent as Assistant Director (BSP-17), whereas during the period from 30.03.2012 to 20.12.2012 the petitioner was performing duties in University of Engineering and Technology, Taxila as Deputy Directors (BPS-18) which shows that he was employed in better pay scale rather than his previous BPS-17 jobs with respondent.

5. In view of the above discussion, we do not find any illegality or irregularity in the impugned judgment. Consequently, the civil petition is dismissed and leave is refused.

Judge

Judge

Islamabad the
19th April, 2022
Khalid
Approved for reporting